

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
May 28, 2026
8:30 AM/1:30 PM

23. AMANDA TAPIA V. JOHN DIVINE

26FL0182

Petitioner filed a Petition for Custody and Support on February 27, 2026. A Summons was issued the same day. Petitioner concurrently filed a Request for Order (RFO) seeking child custody orders. The parties were referred to Child Custody Recommending Counseling (CCRC) with an appointment on April 1, 2026, and a review hearing on May 28, 2026. Upon review of the court file, there is no Proof of Service showing Respondent was properly served with the Petition, Summons, or RFO and other necessary documents.

Only Petitioner appeared at the CCRC appointment. As such, a single parent report was filed with the court on May 14, 2026. Copies were mailed to the parties on May 14th.

The court drops the matter from calendar as the court does not have jurisdiction over the parties since the Petition and Summons have not been served. The court further drops the matter from calendar due to the lack of proper service of the RFO.

TENTATIVE RULING #23: THE COURT DROPS THE MATTER FROM CALENDAR AS THE COURT DOES NOT HAVE JURISDICTION OVER THE PARTIES SINCE THE PETITION AND SUMMONS HAVE NOT BEEN SERVED. THE COURT FURTHER DROPS THE MATTER FROM CALENDAR DUE TO THE LACK OF PROPER SERVICE OF THE RFO.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.